



2025:AHC:177289-DB

HIGH COURT OF JUDICATURE AT ALLAHABAD

WRIT - C No. - 33536 of 2025

Malkhan Singh And Another

.....Petitioner(s)

Versus

State Of Uttar Pradesh And 2 Others

.....Respondent(s)

Counsel for Petitioner(s)	: Amit Kumar, Mayank Tripathi, Neetu Singh
Counsel for Respondent(s)	: Abhishek Srivastava, C.S.C.

Court No. - 3

**HON'BLE SAUMITRA DAYAL SINGH, J.
HON'BLE INDRAJEET SHUKLA, J.**

1. Heard Sri Amit Kumar learned counsel for the petitioners, learned Standing Counsel for the State and Sri Abhishek Srivastava learned counsel for the Distribution Corporation.
2. Challenge has been raised to the Recovery Citation dated 31.05.2025 seeking to recover Rs. 2,64,237/- from the petitioners towards electricity dues.
3. Presently, it is not clear if assessment procedure has been fully complied. Petitioners claim no opportunity of hearing was given to them before the impugned demand came to be created.
4. In view of such facts, no useful purpose may be served in keeping such a petition pending or calling for counter affidavit at this stage. To the extent petitioners may not have been given opportunity of hearing, it is desirable that one opportunity is given to the petitioners before the Assessing Officer/respondent No. 2 under Clause 6.8 of the U.P. Electricity Supply Code 2005.
5. Accordingly, writ petition is **disposed of** with a direction, subject to the petitioners depositing Rs. 50,000/- towards the disputed demand within a period of one month, they may file appropriate application before respondent No. 2 within a further period of one week therefrom. Subject to such compliance, respondent No. 2 may proceed to deal with and

decide petitioners' objection by a reasoned and speaking order, strictly in accordance with law, after confronting the petitioners with all adverse material being relied against them and by giving opportunity of personal hearing as expeditiously as possible, preferably within a period of two months from the date of application being filed by the petitioners.

(Indrajeet Shukla,J.) (Saumitra Dayal Singh,J.)

October 7, 2025

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